

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 6, 2026 TIME: 8:30 A.M.

No. 26CV00475

LARSSON v. ESCHEN

**PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED
COMPLAINT**

Plaintiff's motion is denied without prejudice.

I. BACKGROUND

Self-represented plaintiff April Larsson sued her former attorney, defendant James Eschen, for legal malpractice, breach of fiduciary duty, and breach of contract on February 11, 2026. She alleges defendant failed to attend a mandatory creditors meeting related to a judgment she obtained, lied to her that the meeting had been rescheduled when it had not, and failed to adequately represent her resulting in the discharge of the debt in bankruptcy and the loss to her of her judgment worth \$72,739.92.

Plaintiff now seeks to add a cause of action for fraud/intentional misrepresentation. The extent of her fraud allegations are:

“Defendant falsely represented to Plaintiff that the meeting had been rescheduled when it had not. Defendant failed to inform Plaintiff that the bankruptcy case was dismissed and later that the debt was discharged. Defendant failed to file objections or initiate an adversary proceeding within required deadlines. Defendant ceased communication and abandoned representation without notice. [...] Defendant knowingly made false statements, including that the 341 Meeting was rescheduled. Defendant knew these statements were false or acted with reckless disregard. Defendant intended Plaintiff to rely on these statements. Plaintiff reasonably relied on them. Plaintiff suffered damages as a result. Defendant's conduct was willful, fraudulent, and oppressive, justifying punitive damages.” (Plaintiff's proposed first amended complaint.)

These allegations are not significantly different than in the initial complaint, they merely add conclusory statements for fraud. Plaintiff seeks to add punitive damages as well.

II. LEGAL STANDARDS

Leave of court is required to amend any pleading except as provided by Code of Civil Procedure sections 472 and 474. A judge may, in furtherance of justice and on proper terms, allow the amendment of any pleading at any time, even after commencement of trial. (Code Civ. Proc., §§ 473, subd. (a), 576; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488

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[leave to amend any pleading is entrusted to judge's sound discretion].) Judges should generally be liberal in permitting amendments to pleadings. (*Ibid.*) Judges must consider factors of party conduct, potential prejudice to parties, timeliness of amendment, or unwarranted delay in determining if an amendment is permitted. (See *Duchrow v. Forrest* (2013) 215 Cal.App.4th 1359, 1377; *Emerald Bay Community Assn. v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097-98 [even if proposed amendment in proper form, unwarranted delay in bringing it may be a valid reason for denial].)

III. DISCUSSION

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.)

Concealment is a species of fraud and must be pleaded with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878; *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.) General and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645). The requirement of specificity, however, is relaxed when the allegations indicate the defendant must necessarily possess full information concerning the facts of the controversy. (*Tarmann v. State Farm* (1991) 2 Cal.App.4th 153, 158.) When asserting fraud against a corporate entity, plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Hamilton v. Greenwich Investors XXVI, LLC* (2011) 195 Cal.App.4th 1602, 1614.)

The proposed amendment alleges general conclusions only without specific facts related to fraud. Even if true, they are insufficient to support any fraud claim. Therefore, the Court denies without prejudice plaintiff's motion to add a fraud cause of action. In the event discovery uncovers specific facts that could support a fraud cause of action, plaintiff may renew her motion.